

7.	Wardenburg vs. Markel Insurance Company 25-01503581	1. Demurrer to Amended Complaint 2. Motion to Strike Portions of Amended Complaint 3. Case Management Conference Defendant Assistance Insurance Agency's demurrer to Plaintiff Mark Wardenburg's First Amended Complaint is SUSTAINED as to the First, Second, and Fourth Causes of Action and OVERRULED as to the Third Cause of Action. (Code Civ. Proc. §430.10, subd. (e).) Plaintiff fails to allege a contract of insurance between him and Defendant Assistance. Accordingly, the First and Second Causes of Action cannot be established against Defendant Assistance. Plaintiff has leave to file a Second Amended Complaint to sufficiently allege a contractual relationship with Assistance and the breach of that contract and/or breach of the implied covenant of good faith/fair dealing arising from that contract. Plaintiff fails to allege the cause of action for negligent misrepresentation with sufficient specificity to state a cause of action. Plaintiff has leave to amend to allege the specific facts concerning the alleged misrepresentation, Defendant's lack of reasonable belief in its truth, Defendant's intent for Plaintiff to rely on the statement, Plaintiff's reasonable reliance upon the statement, and resulting damages. The demurrer to the Third Cause of Action for Negligence is OVERRULED. The elements of a cause of action for negligence are "(a) a legal duty to use due care; (b) a breach of such legal duty; and (c) the breach as the proximate or legal cause of the resulting injury." (<i>Ladd v. County of San Mateo</i> (1996) 12 Cal. 4th 913, 917.) Defendant admits that it owes a duty of care "to use reasonable care, diligence, and judgment in procuring the insurance requested by an insured." (<i>Pacific Rim Mechanical Contractors, Inc. v. Aon Risk Ins. Services West, Inc.</i> (2012) 203 Cal. App. 4th 1278, 1283.) Plaintiff has sufficiently alleged that Defendant failed to procure an insurance policy that aligned with what he instructed Defendant to procure. The question of whether Plaintiff knew or should have known the terms of the policy procured are questions of fact that are not appropriately resolved in the context of a demurrer.
-----------	---	---

		Defendant's motion to strike is DENIED without prejudice as MOOT in light of the ruling on the demurrer. Plaintiff shall have 30 days to file a Second Amended Complaint. The Case Management Conference is CONTINUED to March 25, 2027, at 9:30 a.m. in Department C12. Moving Defendant shall provide notice.
8.	Spivey vs. Liboiron 25-01476784	Motion to Enforce Settlement Plaintiff Jessica Spivey's motion to enforce settlement is CONTINUED to October 16, 2026, at 9:30 a.m. in Department C12, due to a proof of service defect and for further briefing as ordered below. As an initial matter, the proofs of service of the moving papers are defective in that they fail to state the email address of the person making service. (Code Civ. Proc., § 1013b, subd. (b)(1).) Plaintiff shall properly serve all moving papers on all parties who have appeared in this action and file proper proof of service of the same with the court by Friday 9/18/26. The subject settlement agreement also reveals multiple procedural issues that plaintiff has failed to address. The settlement agreement settles two separate actions between the parties, including (1) the instant action, Case No. 2025-01476784; and (2) <i>Spivey v. Liboiron, et al.</i>, Case No. 2025-01476793, a wage and hour action that includes Private Attorneys General Act of 2004 (PAGA) claims. (See Schmeichel Decl. ¶¶ 3-5, Ex. 1.) Plaintiff has not filed a motion to consolidate for purposes of enforcing settlement or even a notice of related cases to date, and these cases have yet to be deemed related, much less consolidated. Plaintiff is ORDERED to serve and file a supplemental brief supported by citations to authority addressing all of the following issues, by Friday 9/18/26: (1) Whether Code of Civil Procedure section 664.6 allows the court to enter a judgment pursuant to a settlement agreement in just one of the two separate actions that the settlement agreement jointly resolves. (See Code Civ. Proc., § 664.6, subd. (a) ["If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court ... for